

Disciplinary & Grievance Policy

Document Ref: HR-POL-015 | Effective: March 2027

TechV-Flash is committed to maintaining a fair, transparent, and productive work environment. This policy outlines the framework for addressing employee grievances and detailing the disciplinary actions for misconduct, ensuring natural justice and due process.

1. Employee Grievance Redressal

Employees are encouraged to raise work-related concerns, interpersonal disputes (excluding POSH cases, which fall under HR-POL-010), or policy misapplications without fear of retaliation.

1.1 Escalation Matrix for Grievances

Level 1 (Reporting Manager):

The employee must first attempt to resolve the issue with their direct manager. A written response is required within 5 business days.

Level 2 (HR Business Partner):

If unresolved at Level 1, the employee can escalate to their HRBP. HR will mediate and provide a resolution within 10 business days.

Level 3 (Grievance Redressal Committee - GRC):

For severe or unresolved disputes, the matter is escalated to the GRC (comprising the Dept Head, Head of HR, and Legal Counsel). The GRC's decision is final and binding.

1.2 Grievance Resolution Milestones & SLAs

Grievance Level	Primary Action Authority	Maximum Investigation SLA	Escalation Authority
Level 1 (Reporting Manager)	Direct Supervisor / Lead	5 Business Days from submission	HR Business Partner (Level 2)
Level 2 (HRBP Review)	Assigned HRBP	10 Business Days from escalation	Grievance Committee (Level 3)
Level 3 (GRC Hearing)	Grievance Committee Panel	15 Business Days from escalation	CEO Office (Final Board review)

2. Categories of Misconduct

Category	Examples	Standard Consequence
Minor Misconduct	Chronic lateness, unauthorized casual absences, minor insubordination, failure to comply with the dress code.	Verbal Warning, followed by a First Written Warning.
Major Misconduct	Breach of IT Security (HR-POL-007), negligent damage to company property, misuse of travel allowances.	Final Written Warning, potential suspension, or demotion.
Gross Misconduct	Fraud, theft, physical violence, gross data privacy breach (LEG-POL-008), intoxication on the premises.	Immediate termination without notice (Summary Dismissal).

3. Disciplinary Procedure

3.1 Show Cause Notice

Before any formal disciplinary action (beyond a verbal warning) is taken, the employee will be issued a written "Show Cause Notice" detailing the allegations. The employee has 48 hours to provide a written explanation.

3.2 Disciplinary Hearing

If the written explanation is unsatisfactory, a formal hearing is convened. The employee has the right to present evidence and may be accompanied by one internal colleague (acting as an observer).

4. Suspension Pending Inquiry

Administrative Suspension: In cases of suspected Gross Misconduct (e.g., financial fraud, severe data breach), TechV-Flash reserves the right to suspend the employee with immediate effect pending a full investigation.

During this suspension period (maximum 30 days), the employee will receive 50% of their Basic Salary as a subsistence allowance. If exonerated, the remaining balance will be paid in full. If found guilty, employment is terminated from the date of initial suspension.

5. Mandate & Composition of Disciplinary Committee

5.1 Standing Panel Members

The Disciplinary Committee is a standing body convened to hear cases of Major or Gross Misconduct. The panel comprises three voting members: the HR Director, the Chief Legal Officer, and an independent Department Head from outside the respondent's division.

5.2 Quorum Rules

No hearing can proceed without the physical or secure virtual presence of all three committee members. The legal counsel acts as the secretary, documenting minutes but does not hold voting rights on findings.

6. Investigation & Evidence Collection Protocol

6.1 Accessing Workspace Activity Logs

During investigations of data leakage, software piracy, or fraud, the security team is authorized to extract server logs, code repositories history, and Slack communication logs.

6.2 Witness Deposition Guidelines

Witnesses called to depose before the committee are protected under the non-retaliation clause. Depositions are recorded digitally and signed by the witness to ensure integrity.

6.3 Table of Evidence Integrity Checklist

Evidence Category	Collection Method	Chain of Custody Owner	Security Classification
Digital Logs & Files	MDM server pull, database audit export, repository hash matching.	IT Security HOD	Restricted (Encryption mandatory)
Written Statements / Depositions	Signed statement template, secure video recording.	HR Investigation Lead	Confidential
Physical Assets	Device confiscation, physical inventory tags.	Admin Manager	Internal Use Only

7. Right to Appeal & Appeal Committee

7.1 Filing an Appeal

Employees disciplined or terminated under this policy have the right to file an appeal. The written appeal must be submitted to the CEO's Office within 10 calendar days of receiving the final committee report.

7.2 Appeal Committee Mandate

The Appeal Committee is chaired directly by the CEO or a designated Board Member. The committee reviews the investigation records to ensure due process and releases their decision within 15 working days. The appeal outcome is final.

8. Conflict Resolution & Mediation Services

8.1 Voluntary Mediation Cadence

For interpersonal team disputes that do not violate code of conduct clauses, HR promotes voluntary mediation. Sessions are led by a neutral HR facilitator to help resolve workspace friction.

8.2 Role of External Mediators

If internal mediation fails to resolve executive or department-level conflicts, the company may retain an external mediator. All discussions in mediation are confidential.

9. Handling Whistleblower Reports

9.1 Intake and Anonymity Protocols

Reports submitted via whistleblower channels are routed directly to the Audit Committee. IP logging is disabled on the intake portal to guarantee reporter anonymity.

9.2 Investigation Responsibility

Whistleblower allegations concerning financial theft or executive fraud are investigated by an external forensic auditing firm under the supervision of the Board of Directors.

10. Disciplinary Records & HR File Log

10.1 Active Warning Periods

Written warnings remain active in the employee's HR file for 12 months. If no further disciplinary actions occur, the warning status transitions to "expired" but remains in historical records.

10.2 Table of Disciplinary Records Retention Slabs

Record Category / Severity	Active File Duration	Automatic Removal Option	Future Employer Disclosure Policy
Verbal Warning Summary	6 Months	Yes (Archived from active profile)	Do Not Disclose
Written / Final Written Warning	12 Months	No (Permanent entry in profile)	Confirm status upon formal BGV request only
Summary Dismissal (Gross Misconduct)	Permanent Record	No	Explicitly state termination reason to BGV agencies

11. Anti-Retaliation Policy for Grievances

11.1 Protecting Complainants

TechV-Flash maintains a zero-tolerance policy for retaliation against employees who raise grievances or participate in investigations. Retaliation includes negative task reassignments, salary freezes, or workspace exclusion.

11.2 Post-Resolution Monitoring

HR Business Partners are required to check in with grievance complainants at 30, 90, and 180 days post-resolution to verify that no retaliatory actions have occurred.